

Institutional Integrity & Anti-Coercion Framework

Constitutional Safeguards • Member Rights • Governance Controls • Safeguarding • Accountability

0.1 - Founding Draft
September 18, 2026
[[ORGANIZATION_NAME]]

FOUNDING DRAFT — FOR GOVERNANCE DESIGN AND QUALIFIED LEGAL REVIEW BEFORE FORMAL ADOPTION

Purpose and Status

This framework is designed for a new religious organization that intends to remain open to inquiry while making coercive control, leader absolutism, financial exploitation, spiritual abuse, concealment, retaliatory discipline, and social isolation structurally difficult to develop. It is written as a governance instrument, not a public-relations statement. The central test is not whether outsiders use a particular label; it is whether the institution preserves conscience, consent, due process, independent oversight, transparency, and safe exit in practice.

This is a founding draft for organizational adoption and legal review. It should be conformed to the organization's charter, bylaws, theology, insurance requirements, employment practices, and applicable law by qualified Tennessee nonprofit counsel before final adoption. Where this framework sets a higher standard than law, the higher internal standard is intended to govern unless unlawful or impossible to administer.

Foundational Rule

No human being, office, council, text, claimed revelation, tradition, or institution possesses authority to compel another person's conscience.

Document Hierarchy

Applicable law and charter → entrenched constitutional protections → bylaws → board policies → management procedures → local practices. Lower-level instruments may add protections but may not reduce higher-level rights.

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Article I. Constitutional Principles

Establish non-negotiable principles that control interpretation of every lower-level policy, office, and practice.

1.1 Freedom of conscience

No human being, office, council, text, claimed revelation, tradition, or institution may compel another person's conscience. The organization may teach, persuade, invite, recommend, and set neutral conditions for holding an office, but it shall not use coercion, threats, manipulation, material dependency, or abuse of authority to force belief or religious conformity.

1.2 Human dignity and agency

Every person retains moral agency and the right to make personal decisions about belief, association, family, marriage, medicine, education, vocation, residence, finances, and civic participation, subject only to generally applicable law and freely assumed contractual obligations.

1.3 No infallible living authority

No living founder, teacher, prophet, elder, director, officer, clergy member, council, or successor is infallible, immune from criticism, or beyond investigation, correction, suspension, or removal.

1.4 Claims are distinguishable from authority

A claimed revelation, vision, prophecy, mystical experience, discernment, or message is a claim to be evaluated. It does not become universally binding merely because it is sincerely reported, spiritually significant, historically influential, or endorsed by leadership.

1.5 Institutional humility

The organization shall distinguish evidence, interpretation, theological inference, communal tradition, and personal conviction. It shall permit the explicit conclusion “we do not know” where evidence does not justify confidence.

1.6 Non-retaliation

No person shall suffer retaliation for good-faith questions, disagreement, criticism, complaints, reports of misconduct, participation in an investigation, refusal of a religious practice, or departure from the organization.

1.7 Safe exit

Any participant may leave the organization without forfeiting personal property, wages, earned benefits, access to independent services, ordinary family relationships, or civil dignity. Departure shall not create a duty of social shunning.

1.8 Civil law and external accountability

The organization shall not claim that internal religious processes displace lawful civil reporting, criminal investigation, court orders, tax obligations, employment law, child-protection duties, or other applicable civil requirements.

1.9 Truth over institutional preservation

Protecting the organization's reputation, founder, doctrine, finances, or continuity shall never justify concealment of abuse, destruction of evidence, retaliation, deception, or interference with lawful reporting.

1.10 Subsidiarity of authority

Authority shall be exercised at the lowest competent level. No office shall control a matter merely because it possesses spiritual status or organizational rank.

Article II. Member and Participant Bill of Rights

Define rights that cannot be waived by membership, employment, ordination, volunteering, vows, or participation.

2.1 Right to belief and doubt

Every person may believe, doubt, question, reinterpret, or reject any teaching without being subjected to coercive pressure, harassment, threats, or humiliation.

2.2 Right to information

Participants may read, possess, discuss, and share material from critics, former members, other religions, scholars, media, government, or any lawful source without permission.

2.3 Right of association

Participants may maintain relationships with family, friends, former members, nonmembers, and persons of other beliefs. Leadership shall not direct social exclusion as punishment for ordinary disagreement or departure.

2.4 Right to privacy

Private communications, confessions, counseling disclosures, health information, finances, and intimate personal matters shall be handled according to written confidentiality rules and applicable law. Information shall not be weaponized to secure compliance.

2.5 Right to bodily autonomy and medical independence

No leader may require or forbid lawful medical, psychiatric, psychological, reproductive, or therapeutic care. Spiritual care may supplement but shall not impersonate licensed professional care.

2.6 Right to financial autonomy

No participant shall be required to surrender wages, assets, inheritance, accounts, identification documents, or control of personal property to demonstrate faithfulness.

2.7 Right to decline

A person may decline donations, volunteer work, prayer, confession, counseling, ritual, travel, communal residence, fasting, initiation, spiritual direction, or testimony without retaliation, except that specific voluntary offices may have disclosed role requirements.

2.8 Right to independent advice

Participants may obtain independent legal, financial, medical, psychological, academic, spiritual, or pastoral advice.

2.9 Right to complaint and appeal

Every person has access to a documented complaint pathway, impartial fact-finding, protection from retaliation, and an appeal process where organizational discipline or removal of rights is involved.

2.10 Right to know the rules

No person shall be disciplined under a rule that was secret, retroactively imposed, materially misrepresented, or unavailable to the person at the time of the conduct.

2.11 Right to leave

Membership and participation are voluntary. Exit shall not require payment, permission, confession, nondisparagement, secrecy, transfer of property, or spiritual release by a leader.

2.12 Rights of minors and vulnerable persons

Children and vulnerable adults possess these rights to the maximum extent compatible with lawful guardianship and safeguarding. Religious authority shall never be used to defeat mandatory protection duties.

Article III. Founder and Leadership Limitations

Prevent the founder or any later leader from becoming the institution's unchecked spiritual, corporate, financial, or disciplinary center.

3.1 Founder status is historical, not sovereign

The title of founder records historical contribution and carries no inherent veto, life tenure, ownership interest, doctrinal infallibility, disciplinary privilege, or power to bind future governing bodies.

3.2 Separation of powers

No individual may simultaneously exercise final authority over doctrine, corporate governance, finance, investigations, and discipline. Material decisions in these domains shall be distributed among independent bodies or officers.

3.3 No unilateral board control

The founder or chief executive shall not possess unilateral power to appoint or remove a governing-board majority. Board nominations shall use an independent process with staggered terms and conflict screening.

3.4 No self-compensation

No person may vote on, bargain for, or approve their own compensation, benefits, housing, loans, reimbursements, severance, intellectual-property transactions, or other economic benefits.

3.5 No self-investigation

A leader accused of misconduct shall have no authority over intake, investigator selection, evidence access decisions, findings, sanctions, appeal, public communication, or retaliation review concerning that allegation.

3.6 No dynastic succession

No office may pass automatically to a spouse, child, family member, designated spiritual heir, or favored disciple. Related persons must satisfy the same independent selection process as others.

3.7 Term and review

Executive and senior spiritual leadership shall be subject to periodic performance and integrity review by independent directors. Any life-tenure concept is prohibited for corporate or executive authority.

3.8 Removal

The governing body may suspend or remove any officer, including the founder, under procedures defined by the bylaws. Removal shall not require the officer's consent.

3.9 Founder recusal

The founder shall recuse from matters involving personal compensation, family employment, related-party contracts, allegations against the founder or close associates, succession, and any matter presenting an actual or apparent conflict.

3.10 Founder covenant

Any founder serving in office shall annually sign the same conflict, safeguarding, confidentiality, conduct, and non-retaliation commitments required of other senior leaders, without special exception.

Article IV. Governing Board Independence

Create a board capable of governing rather than merely ratifying decisions made by management or charismatic leadership.

4.1 Size

The board should ordinarily contain seven to eleven voting directors and shall never contain fewer than five except during a temporary vacancy period expressly allowed by the bylaws.

4.2 Independence

At least two-thirds of voting directors shall be independent. An independent director is not an employee, not subordinate to an employee, not an immediate family member of another director or senior staff member, and does not receive material compensation from the organization other than reasonable expense reimbursement or approved board service if legally appropriate.

4.3 Staggered terms

Directors shall serve staggered fixed terms. Consecutive service shall be limited by the bylaws, followed by a meaningful break before reappointment except for narrowly defined emergency circumstances.

4.4 Independent chair

The board chair should be independent and shall not simultaneously serve as chief executive, chief financial officer, lead clergy executive, or founder with executive authority.

4.5 Executive sessions

Independent directors shall meet periodically without staff, founder, or executive leadership present.

4.6 Reserved powers

The board retains exclusive authority over executive appointment and removal, executive compensation, annual budget approval, audited or independently reviewed financial statements, major asset transactions, related-party transactions, safeguarding oversight, investigation of senior leaders, and amendments to entrenched protections.

4.7 Minutes and records

Material decisions shall be documented contemporaneously, including recusals, conflicts, alternatives considered, comparability data where relevant, and the basis for the decision.

4.8 Board access

Directors shall have reasonable independent access to organizational records, outside counsel, auditors, safeguarding advisers, and investigators necessary to discharge fiduciary duties.

4.9 No loyalty oath to a person

Directors may affirm the mission and governing documents but shall not be required to pledge personal loyalty or obedience to a founder, leader, family, or faction.

Article V. Freedom of Conscience and Anti-Coercion Covenant

Translate freedom of conscience into enforceable behavioral prohibitions.

5.1 Prohibited coercive methods

Leadership shall not use threats of expulsion, damnation, supernatural harm, family loss, housing loss, employment loss, financial ruin, exposure of confidential information, humiliation, or social destruction to obtain religious compliance.

5.2 No dependency leverage

Where the organization controls housing, employment, food, transportation, schooling, healthcare assistance, immigration support, or emergency aid, those resources shall not be conditioned on ideological conformity beyond lawful and clearly disclosed role requirements.

5.3 No exhaustion-based consent

The organization shall not use sleep deprivation, food deprivation, prolonged isolation, excessive ritual duration, relentless interrogation, sensory overload, drug use, or exhaustion as a means of obtaining consent, confession, donations, vows, or doctrinal commitment.

5.4 No forced confession

Confession or disclosure of intimate conduct shall not be forced, publicly compelled, recorded without permission, or used as leverage. A person shall not be required to disclose trauma, sexuality, medical history, finances, or past wrongdoing merely to prove spiritual sincerity.

5.5 No compelled political conduct

No religious leader may direct a participant how to vote, which party or candidate to support, or how to engage in lawful civic participation as a condition of spiritual standing or organizational belonging.

5.6 Personal decisions

Leaders may offer requested counsel but shall not make binding personal decisions for competent adults concerning marriage partner, divorce, reproduction, medical treatment, residence, career, education, or personal finances.

5.7 Consent standard

Consent must be informed, specific, voluntary, revocable, and obtained without abuse of spiritual or material dependency. Silence, fear, rank difference, or prior consent does not establish present consent.

Article VI. Epistemic Integrity, Revelation, and Doctrine

Prevent extraordinary spiritual claims from bypassing evidence, deliberation, or individual conscience.

6.1 Claim classification

The organization shall distinguish at minimum: observed or documentary evidence; historical inference; philosophical interpretation; theological hypothesis; communal teaching or tradition; and personal conviction or claimed revelation.

6.2 Revelation is not self-authenticating

No claimed revelation gains corporate authority solely from intensity, charisma, office, spiritual gifts, predictive claims, dreams, visions, altered states, or private certainty.

6.3 Public doctrine process

Material doctrinal changes shall follow a documented process that identifies evidence, competing interpretations, rationale, dissent, and confidence level. Emergency executive decree is not an acceptable ordinary path for doctrine.

6.4 Dissenting record

Where a governing or teaching body reaches a materially contested conclusion, good-faith minority reasoning may be preserved in the institutional record.

6.5 No manufactured certainty

Public teaching shall not represent disputed inference as established fact merely to increase commitment or obedience.

6.6 Correction duty

Material factual errors in public teaching, historical claims, fundraising narratives, or organizational representations shall be corrected promptly and visibly.

6.7 Research independence

Historical and phenomenological research functions shall be free to report evidence that complicates, contradicts, or weakens preferred theological conclusions.

Article VII. Financial Integrity and Stewardship

Prevent money from becoming a mechanism of control or private enrichment.

7.1 Voluntary giving

Giving shall be voluntary. No donation level may determine spiritual worth, access to sacraments or rites, access to leadership, salvation, initiation status, or eligibility for ordinary pastoral care.

7.2 No hardship exploitation

Fundraising shall not knowingly pressure a person to give money or property in a manner reasonably likely to jeopardize basic housing, food, medical care, dependent care, or financial safety.

7.3 Budget transparency

The board shall approve an annual budget. A summarized budget, leadership compensation methodology, major related-party transactions, and year-end financial results shall be made available to members and, where practical, publicly.

7.4 Internal controls

No one person shall control authorization, custody, recordkeeping, and reconciliation for material funds. Dual controls shall apply to disbursements above thresholds set by policy.

7.5 Compensation

Compensation of senior leaders shall be approved in advance by disinterested directors using appropriate comparability data and contemporaneous documentation. The compensated person and conflicted persons shall not participate in deliberation or vote.

7.6 Related-party transactions

A related-party transaction requires disclosure, recusal, independent comparability or competitive evidence where feasible, an affirmative best-interest finding, and documented approval by disinterested directors.

7.7 Loans and personal use

Loans to insiders, personal use of organizational assets, housing arrangements, intellectual-property licenses, vehicle use, travel, and expense reimbursements shall be governed by written policies and reviewed for private benefit concerns.

7.8 Restricted gifts

Donor restrictions that are accepted shall be honored. Funds solicited for a specific project shall not be materially redirected without lawful authority and appropriate disclosure.

7.9 Annual external review

Financial statements shall receive an independent CPA compilation, review, or audit at a level appropriate to organizational size, risk, donor expectations, lender requirements, and law. The board or an independent audit/finance committee shall engage and communicate with the accountant.

7.10 No founder ownership

Organizational assets are not the property of the founder, clergy, directors, members, or donors. Dissolution and asset disposition shall follow governing documents and applicable charitable-purpose requirements.

Article VIII. Safeguarding Children and Vulnerable Persons

Create prevention, reporting, response, and oversight controls before programs involving minors or vulnerable adults begin.

8.1 Zero spiritual exemption

Religious status, confession, pastoral privilege, internal discipline, forgiveness, reconciliation, or the accused person's rank shall never be used to obstruct legally required reporting or protective action.

8.2 Mandatory reporting

The organization shall train all workers and volunteers on applicable reporting law. In Tennessee, the baseline policy shall state that everyone is a mandated reporter of suspected child abuse or neglect and that internal reporting does not replace a report to the appropriate authorities when the legal threshold is met.

8.3 Two-adult rule

Programs involving minors shall ordinarily maintain at least two screened adults or equivalent open-and-observable safeguards, with documented exceptions for emergency, healthcare, or other circumstances covered by written policy.

8.4 Screening

Roles with access to minors or vulnerable persons shall receive role-appropriate application review, references, background checks, identity verification, training, and periodic rescreening where lawful and appropriate.

8.5 One-to-one contact

Private one-to-one contact between an adult leader and a minor shall be limited, observable where practical, and subject to guardian-aware communications rules. Digital communications shall follow the same principle.

8.6 Transportation and lodging

Transport, travel, overnight events, bathrooms, changing areas, lodging, and home visits shall use written safeguards appropriate to age and context.

8.7 Immediate protective action

Credible safety concerns may justify temporary suspension from access or duties while facts are assessed. Administrative leave is not a determination of guilt.

8.8 Survivor-centered response

The organization shall prioritize immediate safety, avoid retaliation or pressure for reconciliation, preserve evidence, provide information about independent support, and refrain from requiring mediation between an alleged victim and alleged perpetrator.

8.9 No internal substitution

An internal inquiry shall not substitute for law-enforcement, child-protection, licensing, or other external investigation when those authorities have jurisdiction.

Article IX. Pastoral and Spiritual-Care Ethics

Define boundaries for relationships involving spiritual trust and asymmetrical authority.

9.1 Scope honesty

Pastoral or spiritual caregivers shall clearly distinguish spiritual support from licensed psychotherapy, medical care, legal advice, financial advice, and other regulated professional services.

9.2 Sexual boundaries

A leader shall not exploit a pastoral, supervisory, counseling, mentoring, or disciplinary relationship for sexual or romantic access. Any potential relationship presenting a power imbalance must be handled under a written conflict and boundary process before romantic pursuit.

9.3 Confidentiality

The organization shall publish the limits of pastoral confidentiality, including safeguarding, threats, legal process, supervision, and other lawful exceptions.

9.4 No dependency engineering

Caregivers shall not deliberately make a person dependent on a particular leader for identity, decision-making, salvation assurance, ordinary social connection, or access to God or transcendent reality.

9.5 Referrals

Leaders shall refer matters beyond their competence to qualified independent professionals and shall not punish a participant for seeking such help.

9.6 Gifts

Material gifts to individual leaders from persons under their pastoral authority shall be restricted by policy, disclosed above stated thresholds, and rejected where acceptance would exploit vulnerability or create a significant conflict.

Article X. Complaints, Whistleblowing, and Non-Retaliation

Ensure allegations can reach a forum not controlled by the person complained about.

10.1 Multiple intake channels

Complaints may be submitted to at least two independent channels, one of which bypasses ordinary management. Anonymous reports shall be accepted while acknowledging evidentiary limitations.

10.2 No chain-of-command barrier

A complaint about a senior leader need not be reported to that leader or through that leader's subordinates.

10.3 Acknowledgment and triage

Reports shall be acknowledged promptly and triaged for immediate safety, mandatory reporting, evidence preservation, conflicts, interim measures, and investigator selection.

10.4 Anti-retaliation

Retaliation includes adverse employment or ministry action, threats, intimidation, social punishment directed by leadership, reputational attacks using confidential information, interference with housing or benefits, or bad-faith discipline triggered by protected reporting.

10.5 Bad-faith reports

Knowingly fabricated allegations may be addressed under ordinary conduct rules, but an allegation is not bad faith merely because it is unsubstantiated, mistaken, difficult to prove, or ultimately not sustained.

10.6 Records

Complaint records shall be access-controlled, retained under a written schedule, preserved when litigation or investigation is reasonably anticipated, and not altered or destroyed to protect reputation.

Article XI. Independent Investigation Protocol

Protect fact-finding from conflicts and predetermined outcomes.

11.1 Independence trigger

Allegations involving the founder, chief executive, senior clergy, a director, safeguarding failures, sexual misconduct, material fraud, retaliation, or systemic abuse shall presumptively be referred to an investigator independent of the implicated chain of command.

11.2 Investigator qualification

The investigator shall have appropriate subject-matter competence and no material relationship that would reasonably call impartiality into question.

11.3 Terms of reference

The appointing body shall define allegations, scope, reporting line, access to records, confidentiality limits, evidence preservation, and authority to expand scope when related misconduct is discovered.

11.4 Fair process

The subject of allegations shall receive a fair opportunity to respond to material allegations and evidence, subject to safety, witness-protection, legal, and investigative constraints.

11.5 Standard and findings

The organization shall identify the evidentiary standard used for internal findings. Findings shall distinguish substantiated, unsubstantiated, inconclusive, and policy/system failures rather than collapsing all outcomes into guilt or innocence.

11.6 Board control

Management shall not alter an independent investigator's factual findings. The governing body may separately determine organizational action and shall document departures from recommendations.

11.7 External authorities

Nothing in the investigation process shall discourage or delay lawful reporting to police, child-protection agencies, regulators, insurers, or courts.

Article XII. Discipline, Removal, and Appeals

Provide due process and prevent discipline from becoming a tool for silencing dissent.

12.1 Defined grounds

Discipline shall be based on published conduct or role standards, not vague disloyalty to a person, criticism of leadership, exposure of misconduct, or failure to display sufficient enthusiasm.

12.2 Notice

Except for urgent interim safety measures, the person shall receive notice of the material allegations and potential consequences before final action.

12.3 Impartial decision maker

A complainant, accused person, investigator, and final decision maker shall not be the same person. Conflicted decision makers shall recuse.

12.4 Proportionality

Responses shall be proportionate and distinguish safety measures, employment consequences, office eligibility, membership status, and spiritual care.

12.5 Appeal

Material discipline affecting membership, office, employment, ordination, or reputation shall have an appeal to a person or body not materially involved in the original decision.

12.6 No compelled reconciliation

Forgiveness, reconciliation, restoration to office, restoration of contact, and legal accountability are distinct concepts. No harmed person shall be compelled to reconcile or resume contact.

12.7 Restoration is not entitlement

Spiritual forgiveness or personal repentance does not create an automatic right to return to leadership, childcare, counseling, financial authority, or other positions of trust.

Article XIII. Exit, Disaffiliation, and Former-Member Relations

Make departure safe enough that continued participation remains genuinely voluntary.

13.1 No permission required

A competent adult may resign membership or participation by any clear expression of intent. Leadership approval is not required.

13.2 No exit fees

No person shall owe an exit fee, spiritual release fee, repayment of ordinary benevolence, or transfer of personal assets as a condition of leaving, except ordinary debts established independently of membership.

13.3 No institutional shunning

The organization shall not direct members to sever ordinary family or social contact with a departed person merely because of departure, disagreement, criticism, or change of belief.

13.4 Privacy after exit

Confidential information about a former member shall remain protected. Departure does not authorize public disclosure of confession, counseling information, health information, or private correspondence.

13.5 Records and property

Personal property shall be returned promptly. Employment records, earned compensation, benefits, housing matters, and contractual obligations shall be handled under ordinary law and written agreements rather than spiritual leverage.

13.6 Criticism

Former members retain the same lawful right to speak about their experience as others. The organization may correct demonstrably false factual claims but shall not use intimidation or confidential information to suppress criticism.

Article XIV. Housing, Employment, Education, and Community Separation

Prevent material dependency from becoming a mechanism of religious obedience.

14.1 Separate agreements

Housing, employment, tuition, stipends, loans, and community-residence arrangements shall use written agreements distinct from membership covenants and shall identify termination, notice, grievance, property, and payment terms.

14.2 No total dependency by design

The organization shall avoid structures in which one leader controls a person's housing, employment, money, transportation, education, healthcare access, and social participation simultaneously.

14.3 Employment rights

Employees shall receive written job descriptions, compensation terms, supervision, complaint channels, and lawful wage practices. Spiritual language shall not be used to evade ordinary employment obligations.

14.4 Communal property

A person contributing property to a community shall receive clear written disclosure of whether the transfer is a gift, lease, loan, investment, or other arrangement and what, if anything, is returnable upon departure.

14.5 Emergency transition

Where loss of organizational housing or employment would create immediate vulnerability, the organization should use reasonable transition procedures rather than abrupt deprivation as punishment, subject to safety and law.

Article XV. Transparency and Public Accountability

Make key controls visible enough that members and outsiders can verify how power is constrained.

15.1 Public governance information

The organization should publish its governing principles, board roster, leadership-selection process, safeguarding commitments, complaint pathway, conflict policy, and a plain-language description of how senior leaders can be removed.

15.2 Financial disclosure

The organization should publish or make readily available annual financial summaries, the independent accountant's report where applicable, executive compensation-setting methodology, and material related-party disclosures consistent with privacy and law.

15.3 Material incidents

The board shall adopt a crisis-disclosure policy addressing when serious substantiated misconduct, safeguarding failures, material fraud, or governance breakdowns require disclosure to members, donors, insurers, regulators, or the public.

15.4 Corrections log

Material corrections to public historical, scientific, financial, or organizational claims should be documented in a durable form rather than silently rewritten where doing so would obscure accountability.

15.5 Policy access

Current policies governing rights, complaints, safeguarding, discipline, and financial conflicts shall be accessible to persons subject to them.

Article XVI. External Institutional Integrity Review

Create recurring adversarial examination rather than relying on internal confidence.

16.1 Frequency

At least once every three years, and more often after major incidents or rapid growth, the board shall commission an external institutional integrity review.

16.2 Review team

The review should include expertise appropriate to organizational risk, such as nonprofit governance, safeguarding, financial controls, coercive-control/high-control dynamics, employment practices, and religious-studies or pastoral ethics.

16.3 Mandate

Reviewers shall be asked to identify how the organization could become coercive, abusive, financially exploitative, leader-centered, retaliatory, opaque, or unsafe notwithstanding its formal policies.

16.4 Access

Reviewers shall receive sufficient access to policies, board minutes, complaint statistics, financial controls, leadership structures, and representative interviews to conduct meaningful review, subject to legal privilege and privacy safeguards.

16.5 Reporting

The board shall receive the full report. A public or member-facing summary shall disclose material findings, remediation commitments, and completion status, with redactions only as reasonably necessary for safety, privacy, privilege, or law.

16.6 Remediation tracking

Material findings shall be assigned owners, deadlines, and board-level follow-up. Repeated unresolved findings shall trigger enhanced oversight.

Article XVII. Entrenchment and Amendment

Prevent a future charismatic majority from casually deleting the safeguards that constrain it.

17.1 Tier I entrenched provisions

Freedom of conscience, no infallible living authority, safe exit, non-retaliation, external reporting, board independence, conflict/recusal rules, safeguarding duties, independent investigation of senior leaders, and the right to criticize leadership are entrenched.

17.2 Amendment threshold

An entrenched provision may be amended only after advance publication of the proposed change and rationale, a waiting period of at least sixty days, two separate board votes at meetings separated by at least thirty days, and approval by at least eighty percent of all seated independent directors.

17.3 No emergency suspension

Entrenched provisions may not be suspended by executive emergency, prophetic declaration, doctrinal decree, unanimous staff agreement, donor demand, or founder instruction.

17.4 Adverse-rights review

Any proposed amendment that materially reduces participant rights, board independence, complaint access, financial controls, or safeguarding shall receive review by independent legal counsel before adoption and shall identify the rights being reduced.

17.5 Member notice

Where the organization has statutory or bylaw voting members, applicable member approval rights shall be honored in addition to these internal thresholds.

17.6 Sunset resistance

Entrenched protections do not expire automatically and shall not be converted to temporary policy by amendment of a lower-level document.

Article XVIII. Implementation, Measurement, and Enforcement

Turn the framework into living controls rather than a document that exists only on paper.

18.1 Annual certification

Senior leaders and directors shall annually certify conflicts, policy receipt, safeguarding obligations, non-retaliation duties, and disclosure of material related-party relationships.

18.2 Training

Directors, staff, clergy, teachers, counselors, and volunteers shall receive role-appropriate training before exercising authority and at periodic intervals thereafter.

18.3 Dashboard

The board shall receive at least quarterly integrity metrics, including complaints received, response times, retaliation allegations, safeguarding incidents, policy exceptions, related-party transactions, leadership turnover, financial-control exceptions, and overdue remediation items.

18.4 Speak-up testing

At least annually, the organization shall test whether participants know how to complain, whether channels bypass management, and whether persons reasonably fear retaliation.

18.5 Policy exceptions

Exceptions to integrity policies shall be documented, time-limited, justified, and approved at the level specified by policy. No exception may override an entrenched constitutional protection.

18.6 Insurance and counsel

The board shall periodically review appropriate insurance, including general liability, directors and officers, employment practices, abuse/molestation coverage where relevant, cyber/privacy coverage, and other risks with qualified professionals.

18.7 Document hierarchy

The organizational hierarchy shall be: applicable law and charter; entrenched constitutional protections; bylaws; board policies; management procedures; local practices. Lower-level instruments may add protections but may not contradict higher-level rights.

Amendment Tiers

Tier	Subject	Minimum internal control
Tier I — Entrenched constitutional protections	Conscience, safe exit, non-retaliation, no infallible leader, independent board, safeguarding, independent senior-leader investigations, external reporting	80% of all seated independent directors + two votes + 60-day publication + 30-day separation + counsel review for rights reductions
Tier II — Bylaws / core governance	Board committees, officer roles, election mechanics, quorum, ordinary discipline procedure	Threshold in bylaws, recommended 2/3 board; legal review for material governance changes
Tier III — Board policies	Finance, conflicts, safeguarding procedures, complaint handling, records, pastoral ethics	Board majority unless policy requires higher threshold; annual review
Tier IV — Procedures	Forms, routing, training cadence, operational workflows	Management within delegated authority; cannot reduce higher-level rights

Separation-of-Powers Matrix

Domain	Primary function	Oversight	Hard stop
Doctrine / teaching	Teaching or doctrine council	Board ensures process integrity; does not manufacture belief	No single leader may bind conscience by private revelation
Executive management	Chief executive / designated officers	Board appoints, reviews, compensates, and removes executive	Founder has no permanent veto
Finance	CFO/treasurer + finance committee	Board approves budget, compensation, related-party transactions, external accountant	Segregation of duties required
Safeguarding	Safeguarding lead / committee	Independent board oversight; external authorities where required	Accused leader has no control of response
Complaints & investigations	Independent intake / investigator	Board or independent committee receives senior-leader cases	Chain of command can be bypassed
Discipline	Designated panel or authorized officer	Appeal to separate person/body	Investigator and final adjudicator separated
External review	Independent reviewers	Board commissions and tracks remediation	Reviewers report without management editing

High-Control Risk Early-Warning Matrix

Risk	Example signal	Required response
Leader centralization	One person becomes doctrinal, financial, disciplinary, and governance endpoint	Mandatory separation of powers; board executive session; external review trigger
Isolation	Members are discouraged from family, critics, outside media, or professionals	Bill of Rights; no shunning; independent-advice right
Revelation escalation	Private spiritual claims begin functioning as commands	Claim classification; doctrine process; no self-authenticating revelation
Financial opacity	Unclear compensation, related-party deals, cash controls, or designated gifts	Disinterested approval; comparability data; external CPA; disclosures
Retaliation	Critics lose roles, housing, friendships, reputation, or access after reporting	Protected activity definition; independent intake; retaliation as separate offense
Safeguarding bypass	Internal forgiveness or counseling substitutes for reporting	Zero spiritual exemption; immediate external reporting when required

Risk	Example signal	Required response
Exit barriers	Leaving triggers fees, threats, property loss, confidentiality weaponization, or directed shunning	Exit article; ordinary contract treatment; privacy after exit
Founder succession capture	Founder appoints compliant board or family successor	Independent nominations; no dynastic succession; founder recusal

Adoption Roadmap

Period	Actions
0–30 days	Adopt interim Member Bill of Rights, Freedom of Conscience Covenant, non-retaliation rule, founder recusal rule, complaint channels, safeguarding baseline, conflicts policy; identify independent directors and counsel.
31–60 days	Conform charter/bylaws; create board committees; adopt compensation/related-party process; establish independent complaint intake; approve record-retention and evidence-preservation procedures; select safeguarding training.
61–90 days	Complete board and staff training; publish public accountability page; implement finance controls; test complaint pathway; complete child/vulnerable-person screening controls before programming.
3–12 months	Commission first external integrity review; obtain appropriate insurance; conduct compensation comparability review; publish first annual integrity and financial summary; remediate findings.
Annually	Director/officer certifications, policy review, safeguarding refresh, integrity dashboard, executive evaluation, compensation approval, conflict disclosures, public report.
Every 3 years	External institutional integrity review and governance stress test; reassess board independence and policy effectiveness.

Board Adoption Resolution

PROPOSED RESOLUTION

RESOLVED, that the Board adopts the Institutional Integrity & Anti-Coercion Framework as a controlling governance standard, subject to conformity review against the charter, bylaws, applicable law, and advice of qualified counsel; and further RESOLVED, that any conflict between a lower-level policy and an entrenched protection shall be resolved in favor of the entrenched protection to the maximum extent permitted by law; and further RESOLVED, that management shall prepare an implementation register, assign accountable owners, and report remediation status to the Board until all founding controls are operational.

Sources and Legal Review Notes

This framework is a governance draft, not legal advice. It intentionally sets some internal standards above statutory minima. Before formal adoption, qualified counsel should harmonize it with the organization's Tennessee charter/bylaws, federal tax-exemption posture, employment model, clergy-confidentiality rules, insurance terms, and any programs involving minors, vulnerable adults, housing, education, or communal living.

- **Internal Revenue Service, Publication 557 (rev. Jan. 2025):** Federal overview of tax-exempt organizations and excess-benefit rules; includes conditions used for the rebuttable presumption of reasonableness.
- **Internal Revenue Service, Intermediate sanctions — Excess benefit transactions:** Defines excess-benefit transactions involving disqualified persons and applicable tax-exempt organizations.
- **Internal Revenue Service, Instructions for Form 990 (2025):** Describes reasonable compensation as the amount ordinarily paid for like services by like enterprises under like circumstances.
- **Tennessee Department of Children's Services, Report Child Abuse:** States that everyone in Tennessee is a mandated reporter and provides the statewide reporting process.
- **Tennessee Attorney General / Center for Nonprofit Management, What Every Board Member Should Know: A Guidebook for Tennessee Nonprofits:** Board-governance guidance for Tennessee nonprofit organizations.
- **Tennessee Secretary of State, Business Forms & Fees — Domestic Nonprofit Corporations:** Current filing resources for Tennessee nonprofit corporations.
- **ECFA, Seven Standards of Responsible Stewardship, Standards 2–7:** A useful voluntary benchmark for independent governance, financial oversight, transparency, compensation, related-party transactions, and stewardship; this framework uses those concepts without adopting ECFA's religious eligibility criteria.

Founding Adoption Checklist

- ☐ Counsel has reviewed charter/bylaws for consistency with entrenched provisions.
- ☐ Independent board seats and conflict definitions are operational.
- ☐ Founder recusal, removal, and succession rules are written into governing documents.
- ☐ Member/participant Bill of Rights is publicly accessible.

- ☐ Complaint channels include at least one path that bypasses ordinary management.
- ☐ Safeguarding rules, screening, reporting, and training are operational before programs involving minors begin.
- ☐ Executive compensation and related-party transaction procedures use disinterested approval and comparability evidence.
- ☐ Finance controls segregate authorization, custody, recording, and reconciliation.
- ☐ Pastoral ethics and confidentiality limits are published.
- ☐ Exit/non-shunning protections are communicated to members and leaders.
- ☐ External integrity review date is calendared no later than three years after launch.
- ☐ Quarterly integrity dashboard is assigned to a board committee.